

23STCV00405 23STCV00405

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-08

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C07%2F08%2F2026

Source SHA-256: 1794d5c59fb1270fedecb3ac2c10a468a9c2a38480c1518e8a9b682b482de9e1

Case Number: 23STCV00405 Hearing Date: July 8, 2026 Dept: 529

COUTUDI CORP. VS DENIM PLACE, INC.

MOTION

TO ENFORCE THE PARTIES' SETTLEMENT AGREEMENT

Date

of Hearing: July 8, 2026 Trial Date: October
12, 2026

Department: 529 Case No.: 23STCV00405

Moving

Party: Defendant Denim Place,
Inc. dba Moderno Jeans

Responding

Party: Plaintiff Coutudi Corp.

BACKGROUND

On January 9,
2023, Coutudi Corp. (Plaintiff) filed a Complaint against Denim
Place, Inc. (Denim). On October 16, 2023, a First Amended Complaint (FAC) was
filed containing nine causes of action against Denim, Wei Mao, Fang
Wang, Chang Bo Wu, and Pristine-Wear Inc. The allegations within the FAC
surround business dealings between the parties concerning shipments
of clothing and garments.

On February 24, 2023, Denim Place filed a cross-complaint against Coutudi Corp. for vicarious liability, breach of contract, and negligent interference with prospective economic relations. On April 14, 2023, Denim Place filed a First Amended Complaint.

On January 22, 2024, Fang Wang filed a cross-complaint against Coutudi Corp. for various violations of Labor Code. On May 21, 2024, Chang Bo Wu and Wei Mao filed a cross-complaint against Coutudi Corp for various violations of Labor Code.

Coutudi Corp. filed a cross-complaint against Wei Mao for equitable indemnity on June 25, 2024. Coutudi Corp. dismissed the cross-complaint on July 9, 2024.

On October 20, 2025, Denim Place, Inc. dismissed all cross-complaints filed by them. On June 25, 2026, Coutudi Corp. dismissed Defendant Fang Wang. Fang Wang dismissed its cross-complaint on June 29, 2026. Coutudi Corp. dismissed Denim Place on June 8, 2026.

[TENTATIVE]
RULING

Motion to Enforce the Parties' Settlement Agreement is MOOT and the request for sanctions is DENIED.

DISCUSSION

Defendant Denim Place, Inc. moves this court, pursuant to Code of Civil Procedure section 664.6, for an order enforcing the parties' fully executed Release and Settlement Agreement ("Settlement Agreement"), directing dismissal of the action with prejudice, and awarding Defendant its attorneys' fees and costs incurred in enforcing the Settlement Agreement.

Pursuant to Code of Civil Procedure section 664.6, "if parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. ۞ If requested by the parties, the court may retain jurisdiction over the parties to

enforce the settlement until performance in full of the terms of the settlement.” (CCP §664.6.) It is not enough simply to provide for a retention of jurisdiction in the settlement agreement. (Mesa RHF Partners, L.P. v. City of Los Angeles (2019) 33 Cal.App.5th 913, 918.) Instead, the request to retain jurisdiction must be filed with the court: “the parties could have easily invoked section 664.6 by filing a stipulation and proposed order either attaching a copy of the settlement agreement and requesting that the trial court retain jurisdiction under section 664.6 or a stipulation and proposed order signed by the parties noting the settlement and requesting that the trial court retain jurisdiction under section 664.6. The process need not be complex. But strict compliance demands that the process be followed.” (Ibid.; see Sayta v. Chu (2017) 17 Cal.App.5th 960.)

Defendant argues because it has satisfied all of its obligations under the Settlement Agreement, including fully paying all settlement payments to Coutudi Corp., Defendant is entitled to an order enforcing the Settlement Agreement and dismissing this action with prejudice pursuant to the terms of the Settlement Agreement, or alternatively ordering Plaintiff to immediately execute and file a Request for Dismissal with prejudice.

On June 8, 2026, Coutudi Corp. dismissed Denim with prejudice. Denim still seeks attorney fees in the amount of \$ 6,960.00, pursuant to ¶ 11 of Settlement Agreement. Coutudi opposes the request on three grounds: (1) the fourteen-day dismissal provision was already moot; (2) the initial 2024 Settlement Agreement contains no integration or “entire agreement” clause; and (3) , the parties 'own conduct confirms that they never reached an agreement requiring Coutudi to file a dismissal before Defendant's settlement payments cleared.

The court finds the motion for relief is moot as the dismissal with prejudice has now been entered. With respect to the request for attorney fees, the court finds that the final payment was not made until May 26, 2026. The parties' settlement agreement was silent as to how long after the final payment was made that the action had to be dismissed with prejudice. Under the circumstances, the court finds the request for attorney fees to be unreasonable. This entire motion could have been avoided by better communication between counsel.